

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabe-D excess burden	Gross outcome error	Total expenditures
American	0.140	0.118	0.065	0.132	0.251
Trial Fee-Shifting	0.068	0.072	0.057	0.084	0.193
Complete Fee-Shifting	0.077	0.077	0.058	0.095	0.206

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabe-D excess burden	Gross outcome error	Total expenditures
American	0.144	0.144	0.009	0.204	0.169
Trial Fee-Shifting	0.141	0.141	0.010	0.209	0.159
Complete Fee-Shifting	0.157	0.157	0.008	0.242	0.159